

OFFICE OF THE SECRETARY

P.O. Box 942883
Sacramento, CA 94283-0001



September 20, 2018

Honorable William Davis
Judge of the Superior Court
County of Siskiyou
311 Fourth Street Rm 206
Yreka, CA 96097

Re: Stephens, Dennis Lee
CDC No.: BC7656
Case No.: 2011-1731
Date of Sentence: 03/30/2017

Dear Honorable Williams Davis:

The purpose of this letter is to provide the court with authority to resentence Dennis Lee Stephens pursuant to Penal Code Section 1170, subdivision (d). This section provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation, the court may recall a previously ordered sentence and commitment, and resentence the defendant in the same manner as if he or she had not previously been sentenced, provided the new sentence is no greater than the initial sentence.

Inmate Stephens was sentenced in 2017, and was convicted of section 245, subdivision (a)(1), ASSAULT W/DEADLY WEA. The trial court sentenced inmate Stephens on 03/30/2017. At sentencing, the trial court imposed two sentence enhancements: 12022.7 and 186.22, subdivision (b)(1)(C). Both sentence enhancements were attached to Inmate Stephens's section 245 offense. (See attached abstract.)

In light of the above, please consider *People v. Gonzalez* ((2009) 178 Cal.App.4th 1325. In *People v. Gonzalez*, the appellate court held the trial court should not have imposed sentence enhancements under section 12022.7, subdivision (a) and section 186.22, subdivision (b)(1)(C) because both sentence enhancements were based on the great bodily injury the defendant caused while committing the underlying offense. (*Id.* at p. 1332.)

Based on the above facts and case law, it appears that inmate Stephens's sentence warrants the attention of the court. Pursuant to Section 1170, subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resented in accordance with the cited authority.

Sincerely,

A blue ink signature of Ralph M. Diaz, written in a cursive style, is positioned above the name and title.

RALPH M. DIAZ
Secretary (A)

Enclosures:
Abstract of Judgment-Prison Commitment-Determinate
Minute Order
Information/Complaint

cc: Honorable William J. Davis, Siskiyou County Presiding Judge
Siskiyou District Attorney
Public Defender

FELONY ABSTRACT OF JUDGMENT - DETERMINATE
[NOT VALID WITHOUT COMPLETED PAGE TWO OF CR-290 ATTACHED]

CR-290

FILED
 SUPERIOR COURT OF CALIFORNIA
 COUNTY OF SISKIYOU
 YREKA BRANCH

FEB - 7 2018

BY: K. Morgan
 DEPUTY CLERK

SUPERIOR COURT OF CALIFORNIA, COUNTY OF: SISKIYOU			
PEOPLE OF THE STATE OF CALIFORNIA vs DEFENDANT: DENNIS LEE STEPHENS	DOB: 06-11-1983	2011-1731 -A	
AKA		2016-1297 -B	
CII NO: A23326715	☐ NOT PRESENT		-C
BOOKING NO: 1139303			-D
FELONY ABSTRACT OF JUDGMENT ☒ PRISON COMMITMENT ☐ COUNTY JAIL COMMITMENT ☒ AMENDED ABSTRACT			
DATE OF HEARING 03-30-17	DEPT. NO. 4	JUDGE WILLIAM DAVIS	
CLERK K.MORGAN	REPORTER J.QUESADA	PROBATION NO. OR PROBATION OFFICER B.GATZEMEYER ☐ IMMEDIATE SENTENCING	
COUNSEL FOR PEOPLE J.QUINN		COUNSEL FOR DEFENDANT R.O'CONNOR ☒ APPTD.	

1. Defendant was convicted of the commission of the following felonies:

☐ Additional counts are listed on attachment
 (number of pages attached)

COUNT	CODE	SECTION NO.	CRIME	YEAR CRIME COMMITTED	DATE OF CONVICTION (MO./DATE/YEAR)	CONVICTED BY			TERM (L, M, U)	CONCURRENT	CONSECUTIVE 1/3 VIOLENT	CONSECUTIVE FULL TERM	INCOMPLETE SENTENCE (refer to item 5)	654 STAY	SERIOUS FELONY	VIOLENT FELONY	PRINCIPAL OR CONSECUTIVE TIME IMPOSED	
						JURY	COURT	PLEA									YRS.	MOS.
A2	PC	245(a)(1)	ASSAULT W/ DEADLY WEA	2010	09/25/12			X	U								04	00
A5	PC	1320.5	FAILURE TO APPEAR	2010	09/25/12			X	U	X							03	00
A12	PC	182(a)(1)	CONS TO COMMIT CRIME	2010	09/25/12			X	U	X							04	00
A13	VC	2800.2(a)	FLIGHT FROM TRAFFIC OFF	2010	09/25/12			X	U	X							03	00
A17	HS	11378	POSS OF CONTRL SUBS	2010	09/25/12			X	U	X							03	00
A21	HS	11351	POSS OF CONTRL SUB	2010	09/25/12			X	U	X							04	00

2. ENHANCEMENTS charged and found to be true TIED TO SPECIFIC COUNTS (mainly in the PC 12022 series). List each count enhancement horizontally. Enter time imposed for each or "S" for stayed, OR "PS" for punishment struck. DO NOT LIST ENHANCEMENT(S) FULLY STRICKEN by the court.

COUNT	ENHANCEMENT	TIME IMPOSED "S," or "PS"	ENHANCEMENT	TIME IMPOSED "S," or "PS"	ENHANCEMENT	TIME IMPOSED "S," or "PS"	TOTAL	
A2	PC 12022.7(a)	03					03	00
A17	HS 11370.2(c)	(03)					03	00

3. ENHANCEMENTS charged and found to be true for PRIOR CONVICTIONS OR PRISON TERMS (mainly in the PC 667 series). List all enhancements horizontally. Enter time imposed for each or "S" for stayed, OR "PS" for punishment struck. DO NOT LIST ENHANCEMENT(S) FULLY STRICKEN by the court.

ENHANCEMENT	TIME IMPOSED "S," or "PS"	ENHANCEMENT	TIME IMPOSED "S," or "PS"	ENHANCEMENT	TIME IMPOSED "S," or "PS"	TOTAL	
PC 186.22(b)(1)(c)/667.5(c)(8)	10					10	00
PC 186.22(b)(1)(B)/1192.7(c)(28)	(05)					05	00

4. Deft. sentenced to ☐ to county jail per 1170(h)(1) or (2)
☐ to prison per 1170(a), 1170.1(a) or 1170(h)(3) due to ☐ current or prior serious or violent felony ☐ PC 290 or ☐ PC 186.11 enhancement
☒ per PC 667(b)-(i) or PC 1170.12 (two strikes)
☐ PC 1170(a)(3). Pre-confinement credits equal or exceed time imposed. ☐ Defendant ordered to report to local parole or probation office.

5. INCOMPLETED SENTENCE(S) CONSECUTIVE

COUNTY	CASE NUMBER

6. TOTAL TIME ON ATTACHED PAGES: (09) (04)

7. ☐ Additional indeterminate term (see CR-292).

8. TOTAL TIME EXCLUDING COUNTY JAIL TERM: 17 00

Attachments may be used but must be referred to in this document.

PEOPLE OF THE STATE OF CALIFORNIA vs. DEFENDANT: DENNIS LEE STEPHENS			
2011-1731	-A	2016-1297	-B
		-C	-D

9. FINANCIAL OBLIGATIONS (plus any applicable penalty assessments):

a. Restitution Fines:

Case A: **\$9936.68*** per PC 1202.4(b) (forthwith per PC 2085.5; if prison commitment); **\$10,000.00** per PC 1202.45 suspended unless parole is revoked.
\$10,000.0 per PC 1202.44 is now due, probation having been revoked.

Case B: **\$5400.00** per PC 1202.4(b) (forthwith per PC 2085.5; if prison commitment); **\$5400.00** per PC 1202.45 suspended unless parole is revoked.
 \$_____ per PC 1202.44 is now due, probation having been revoked.

Case C: \$_____ per PC 1202.4(b) (forthwith per PC 2085.5; if prison commitment); \$_____ per PC 1202.45 suspended unless parole is revoked.
 \$_____ per PC 1202.44 is now due, probation having been revoked.

Case D: \$_____ per PC 1202.4(b) (forthwith per PC 2085.5; if prison commitment); \$_____ per PC 1202.45 suspended unless parole is revoked.
 \$_____ per PC 1202.44 is now due, probation having been revoked.

b. Restitution per PC 1202.4(f):

Case A: \$_____ ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund
 Case B: \$_____ ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund
 Case C: \$_____ ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund
 Case D: \$_____ ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund
☐ * Victim name(s), if known, and amount breakdown in item 13, below. ☐ * Victim names(s) in probation officer's report.

c. Fines:

Case A: \$_____ per PC 1202.5. \$_____ per VC 23550 or _____ days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$_____ Drug Program Fee per HS 11372.7(a) for each qualifying offense.

Case B: \$_____ per PC 1202.5. \$_____ per VC 23550 or _____ days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$_____ Drug Program Fee per HS 11372.7(a) for each qualifying offense.

Case C: \$_____ per PC 1202.5. \$_____ per VC 23550 or _____ days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$_____ Drug Program Fee per HS 11372.7(a) for each qualifying offense.

Case D: \$_____ per PC 1202.5. \$_____ per VC 23550 or _____ days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$_____ Drug Program Fee per HS 11372.7(a) for each qualifying offense.

d. Court Operations Assessment: **\$560.00** per PC 1465.8.e. Criminal Conviction Assessment: **\$420.00** per GC 70373. f. Other: \$_____(specify):_____

10. TESTING a. ☐ Compliance with PC 296 verified b. ☐ AIDS per PC 1202.1 c. ☐ other (specify):_____

11. REGISTRATION REQUIREMENT: ☐ per (specify code section):_____

12. ☐ MANDATORY SUPERVISION: Execution of a portion of the defendant's sentence is suspended and deemed a period of mandatory supervision under Penal Code section 1170(h)(5)(B) as follows (specify total sentence, portion suspended, and amount to be served forthwith):

Total: Suspended: Served forthwith:

13. Other orders (specify):

A:**DEF MADE PAYMENT OF \$63.22 TOWARDS REST FINE PC 1202.4, PC 1205(d)-\$35.00, PC 987.7-\$25.00, HS 11372.5-\$39.00, PC 1463.07-\$25.00

B: HS 11372.7-\$150.00,

14. IMMEDIATE SENTENCE: ☐ Probation to prepare and submit
 Post-sentence report to CDCR per PC 1203c
 Defendant's race/national origin: WHITE

16. CREDIT FOR TIME SERVED

15. EXECUTION OF SENTENCE IMPOSED:

- a. ☒ at initial sentencing hearing. **CASE B**
 b. ☐ at resentencing per decision on appeal.
 c. ☒ after revocation of probation. **CASE A**
 d. ☐ at resentencing per recall of commitment. (PC1170(d).)
 e. ☐ other (specify):_____

17. The defendant is remanded to the custody of the sheriff ☒ forthwith after 48 hours excluding Saturdays, Sundays, and holidays.

To be delivered to ☒ the reception center designated by the director of the California Department of Corrections and Rehabilitation.

☐ County Jail ☐ other (specify):_____

CASE	TOTAL CREDITS	ACTUAL	LOCAL CONDUCT
A	212	185	27 ☐ 2933 ☒ 2933.1 ☐ 4019
B	370	185	185 ☐ 2933 ☐ 2933.1 ☒ 4019
C			☐ 2933 ☐ 2933.1 ☐ 4019
D			☐ 2933 ☐ 2933.1 ☐ 4019
Date Sentence Pronounced:		Time Served in State Institution:	
03-30-17		DMH	CDC CRC
		[]	[] []

CLERK OF THE COURT

I hereby certify the foregoing to be a correct abstract of the judgment made in this action.

DEPUTY'S SIGNATURE K.MORGAN	DATE 2/7/2018
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